

25VECV05013 25VECV05013

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-07-30

Motion: DEFENDANT'S MOTION FOR AN ORDER QUASHING SERVICE OF THE SUMMONS AND COMPLAINT AND SETTING ASIDE ITS DEFAULT

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=NW%20%2CU%2C07%2F30%2F2026

Source SHA-256: 71417ee0a7d3c21f55fc0f37d29256fb2dfd44a43af6325a94598cbb51390520

Case Number: 25VECV05013 Hearing Date: July 30, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

1 LIFE RECOVERY CENTERS, a California corporation,

Plaintiff,

vs.

INNER CIRCLE BILLING, INC., a California corporation; and DOES 1-100, inclusive,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 25VECV05013

[TENTATIVE] ORDER RE: DEFENDANT'S MOTION FOR AN ORDER QUASHING SERVICE OF THE SUMMONS AND COMPLAINT AND SETTING ASIDE ITS DEFAULT

Dept. U

8:30 a.m.

July 31, 2026

BACKGROUND

This case is a breach of contract action filed by Plaintiff 1 Life Recovery Centers against Defendant Inner Circle Billing, Inc.

On September 4, 2025, Plaintiff filed its original complaint against Defendant.

On September 24, 2025, Plaintiff filed its first amended complaint (the "FAC") against Defendant.

On October 23, 2025, Plaintiff filed its proof of service documenting substituted service on "Tonette Mallony," Defendant's authorized agent, at the address 2828 Cochran Street #187 in Simi Valley on October 22, 2025, at 12:34 P.M., by leaving papers with Kiana "Doe," a mailbox clerk at a UPS Store. The proof of service is not accompanied by a diligence declaration.

On December 30, 2025, Plaintiff filed a second proof of service documenting the same efforts at substituted service as are included in the proof of service filed on October 23, 2025.

Also on December 30, 2025, the Clerk entered Defendant's default. Plaintiff proceeded by seeking default judgment. Default judgment has not been entered.

On May 20, 2026, Defendant filed its motion for an order quashing service of the summons and complaint and setting aside its default.

On July 17, 2026, Plaintiff filed its opposition brief.

On July 24, 2026, Defendant filed its reply brief.

RULING

The motion is granted.

LEGAL STANDARD

“When service of a summons has not resulted in actual notice to a party in time to defend the action and a default or default judgment has been entered against the party in the action, the party may serve and file a notice of motion to set aside the default or default judgment and for leave to defend the action.” Code Civ. Proc., § 473.5 (a).

A defendant may, at any time before the expiration of its time to plead, move to quash service on the ground that the court lacks jurisdiction, and it may do so by filing a noticed motion to quash the service of summons, stating why the summons is defective. Code Civ. Proc., § 418.10 (a)(1); *Ruttenberg v. Ruttenberg* (1997) 53 Cal.App.4th 801, 808-809.

DISCUSSION

Defendant moves for an order quashing service of the summons and complaint and setting aside its default.

In support of its motion, Defendant submits the declaration of Tonnete Mallory, Defendant's officer and authorized agent. Ms. Mallory explains that while Defendant uses the UPS Store located on Cochran Street to receive mail, Defendant has another address located at 2526 Patton Drive in Melissa, Texas, which Defendant uses as its principal office address. Ms. Mallory attests that in March 2024, she provided Defendant with the Texas address. Though Plaintiff effected service at the UPS Store by leaving papers with a mail clerk, Plaintiff did not try to effect service at Defendant's Texas address. Ms. Mallory attests that Defendant did not receive actual notice of this action until March 19, 2026, when she received forwarded mail from the UPS Store address. Defendant then promptly referred this matter to its insurance carrier in April 2026. (Mallory decl., ¶¶ 1-8.)

Defendant reasons that because it did not receive actual notice of this action until March 19, 2026, and because Plaintiff did not attempt service at the Texas address before obtaining Defendant's default, Defendant is entitled to relief from entry of default. Defendant argues the Court should also quash service of the summons and complaint because Plaintiff did not exercise reasonable diligence before purportedly serving Defendant by leaving papers with a mail clerk.

Plaintiff opposes the motion on grounds that the address at which papers were left is listed as Defendant's business address in the Secretary of State's records. Plaintiff argues, “Essentially, Defendant has created a system where unless they check their public mailbox, they won't have notice. In allowing Defendant to Quash this Service the Court would allow Defendant to get away with placing their preverbal [sic] head in the sand and forever avoiding service.” (Opposition, p. 7:21-24.) The Court disagrees with Plaintiff's characterization of Defendant's conduct, especially in light of the fact that Defendant literally told Plaintiff where to effect service and Plaintiff failed to do so.

The Court finds Defendant's explanation as to how it failed to receive actual notice of this action until March 2026 to be credible. Additionally, Plaintiff fails to address Ms. Mallory's testimony that she previously provided Defendant with Defendant's business address in Texas. Plaintiff fails to show that service was attempted at the Texas address. Thus, the Court agrees with Defendant that its default should be set aside due to Defendant's non-receipt of actual notice before entry of default. The Court also agrees with Defendant that service should be quashed due to Plaintiff's failure to show reasonable diligence at serving Defendant elsewhere before leaving papers with a mailbox clerk.

The motion is granted.

CONCLUSION

Defendant Inner Circle Billing, Inc.'s motion for an order quashing service of the summons and complaint and setting aside its default is GRANTED.

Defendant Inner Circle Billing, Inc. is ORDERED to give notice.

DATED: July 31, 2026

Lee S. Arian

Judge of the Superior Court